HILCHOT PESAH - SHULHAN ARUKH

Erev Pesah on Shabbat: Biur Schedule & Disposing of Hames

Hilchot Pesah Simanim 444–445

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–432	30 days before Pesach; month of Nisan; Shabbat HaGadol; Bedikat Chametz timing; the bracha
Class 2	432–433	Why "al biur" not "al bedikat"; candle vs torch; where to check; high/low places; hole in walls; synagogues
Class 3	434–437	After Bedikah — bitul night and day; chametz timeline; appointing agents; missed bedikah; renting a house
Class 4	438–440	Mouse/child with chametz; kezayit threshold; kavua principle; non-Jew depositing chametz
Class 5	443–444:1	Chametz on Erev Pesach after six hours; calculating the times; smelling chametz; Erev Pesach on Shabbat (intro)
Class 5b	**444:2–5, 445**	**Erev Pesach on Shabbat (continued): bitul and bi'ur schedule; disposing of chametz on Shabbat; washing dishes; travelling; the laws of bi'ur chametz**

Siman 444 (Continued) — When Erev Pesach Falls on Shabbat

Recap of Se'if 1 (from last class)

- Bedikat Chametz on Thursday night. Leave food for two Shabbat meals.
- Seudah Shlishit: cannot use chametz (too late) or matzah (Erev Pesach). Best option: matzah mevushelet (boiled) or matzah metugenet (fried). Alternatively: matzah ashirah (Sephardim), or meat/fish/fruit.
- Seudah Shlishit must be eaten **before the 10th hour** (two hours before end of day) — so you eat the matzah at the Seder with appetite (le-te'avon).

Se'if 2 – Bitul and Bi'ur Schedule When Erev Pesach Falls on Shabbat

The Key Distinction: Bitul vs. Bi'ur

Term	Meaning	Type of Action
Bitul	Nullification — verbal/mental declaration giving up ownership of chametz	Declaration (Kol Chamira)
Bi'ur	Disposal/destruction — physically getting rid of chametz	Physical act (burning, flushing, crumbling, etc.)

The Schedule

Thursday Night:

- Bedikat Chametz (with bracha).
- **Bitul** — say Kol Chamira (night version: "which I don't know about" — because you still want the chametz you know about for Shabbat).

Friday (any time — preferably before chatzot):

- **Bi'ur** — dispose of all chametz you won't need for Shabbat.
- **No bitul** on Friday — there's no purpose. You already did bitul Thursday night, and you still need to keep chametz for Shabbat.
- The Shulchan Aruch recommends doing bi'ur at the **normal time** (one hour before chatzot) — not because it's required, but so that in other years you maintain the habit of disposing at the correct time.
- If you forgot or were delayed — you can do bi'ur **any time on Friday**, even late afternoon. This is because the prohibition of owning chametz doesn't begin until Shabbat morning (end of the 5th hour).

Shabbat Morning (after finishing your meal, before the deadline):

- **Bi'ur** — dispose of any remaining chametz (see methods below).
- **Bitul** — say Kol Chamira again (day version: "which I know about and which I don't know about" — now you're giving up everything).

Summary Table

When	Bitul?	Bi'ur?
Thursday night (after Bedikah)	✅ Yes — Kol Chamira (night version)	❌ Not yet
Friday (any time, preferably before chatzot)	❌ No purpose	✅ Yes — dispose of all chametz not needed for Shabbat
Shabbat morning (after meal, before 5th hour deadline)	✅ Yes — Kol Chamira (day version)	✅ Yes — dispose of remaining chametz

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Se'if 3 — Don't Cook Sticky Foods Before This Shabbat

Shulchan Aruch: Don't cook foods that stick to the pot (e.g., porridge, dough-based dishes) for this Shabbat.

Why? Because you'll need to wash/scrub the pots on Shabbat to remove chametz residue — and washing dishes on Shabbat raises a concern of **hachanah** (preparation for after Shabbat).

The Rama adds: If you did cook such foods and there is stuck chametz, you **may** wash on Shabbat — because in this case, it's not preparation; it's removing chametz before the prohibition kicks in.

Modern Application: Washing Dishes on Shabbat

This halacha depends entirely on your normal weekday practice:

Your Normal Practice	Washing Dishes on Shabbat?
You **always** wash dishes immediately / keep a clean kitchen during the week	✅ **Permitted** on Shabbat — it's part of your normal oneg Shabbat (enjoyment), not hachanah
You **let dishes stack up** during the week and wash every few days	❌ **Not permitted** on Shabbat — washing would be hachanah (saving time for the week)

Same principle applies to loading a dishwasher on Shabbat: If you normally load it immediately during the week (you don't like dirty dishes on the counter), you may do so on Shabbat. If you normally wait and batch-load, you may not.

Se'if 4 — What to Do with Remaining Chametz on Shabbat Morning

After eating: Shake off crumbs onto the floor — that's sufficient.

The Mishnah Berurah endorses this: Crumbs on the floor will be trampled upon during Pesach and are not a concern. You don't need to panic about every crumb.

A word of musar from the Rav: People should not get anxious, shout at family members, or create anger over crumbs of chametz. This violates prohibitions of ona'at devarim (hurtful speech) and causes unnecessary stress — all over crumbs that the halacha itself says are not a problem. Be calm. Shake crumbs onto the floor; they'll be trampled.

Remaining chametz dishes: Put them away where you store your chametz dishes for Pesach.

If You Have Leftover Bread — Options for Bi'ur on Shabbat

Since you can't burn, carry to the sea, or crumble into the wind on Shabbat, here are the options in order of priority:

Option 1: Give to a non-Jew

- You can give a non-Jew small amounts that he could eat now (one meal's worth).
- You **cannot** give large amounts that he'd need to carry home — that's implicitly instructing him to carry in reshut ha-rabim (a Torah prohibition), which you cannot ask a non-Jew to do even for a mitzvah.
- If he decides on his own to take small amounts home — that's fine.

- **If really stuck:** Many poskim hold our regular streets are not reshut ha-rabim de'oraita (only a karmelit / de-rabbanan). In that case, you could ask the non-Jew to carry even more — it's a rabbinic prohibition being done for a mitzvah purpose (shvut de-shvut le-tzorech mitzvah).

Option 2: Gift the entire chametz to a non-Jew (if too much to carry)

- If you have a large amount (e.g., a whole garage of chametz you forgot about), give it **all** to the non-Jew as a **complete gift** with a proper kinyan.
- Kinyan options: he lifts it up; you hand over the key to the room.
- **Giving gifts on Shabbat** is normally not permitted — but here it's for a mitzvah, so it's allowed.
- **The gift must be genuine** — he can keep it if he wants. You can't make it conditional.
- **Selling on Shabbat:** Some poskim permitted selling (since it's to avoid a prohibition, not "business"). However, **we don't follow this** — the main halacha is you must give it as a gift, not sell.

Option 2b: Add to your mechirat chametz cupboard

- If you've done mechirat chametz and designated a specific cupboard/room — you can theoretically add remaining chametz to it on Shabbat morning.
- **Why?** The sale was executed on Friday, and can take effect (chal) on Shabbat. There's nothing wrong with a pre-arranged sale taking effect on Shabbat.

Option 3: No non-Jew available

- Do **bitul** (which you can do on Shabbat — it's a verbal declaration).
- **Cover** the chametz with a utensil (kli).
- Dispose of it after the Chag.

Option 4: Modern methods

- **Flush down the toilet** — the Mishnah Berurah endorses this.
- **Pour strong chemicals/detergent** on it to make it completely inedible (even for a dog). Then place it in your bin — it's no longer halachically chametz.

Option 5: If you have an eruv

- Take the chametz outside, crush it into small pieces, and leave it in a public area (not your property). The wind/elements will disperse it — this constitutes bi'ur.
- **You cannot** just leave a whole challah on the street — that's not an act of destruction. You must crush/crumble it first.

Se'if 4 (Continued) — Do Bitul Even If No Chametz Remains

Shulchan Aruch: Even if you consumed all your chametz perfectly — ate everything Friday night and Shabbat morning with nothing remaining — you **still say Kol Chamira** at the correct time on Shabbat morning.

Why? Just in case there is still chametz from Thursday night until now that you forgot about or didn't notice in your house. The bitul covers any unknown chametz.

Se'if 5 — Travelling for a Mitzvah and Remembering Chametz at Home

Scenario: You're on your way to a brit milah or engagement party on Erev Pesach, and you suddenly remember you left chametz at home.

Situation	What To Do
Enough time to go back, dispose, and still do the mitzvah	Go back and do bi'ur, then go to the mitzvah
Not enough time — doing bi'ur means missing the mitzvah	Just do **bitul** (in your heart/verbally) and continue to the mitzvah

Critical caveat: Bitul only works **when the chametz still belongs to you** — i.e., **before the end of the 5th hour** (one hour before chatzot, when ownership is rabbinically revoked). From chatzot onwards, the chametz certainly doesn't belong to you (de'oraita), and you **cannot** do bitul.

Timing	Can You Do Bitul?
Before end of 5th hour (before rabbinical cutoff)	✅ Yes — bitul works; skip bi'ur for the mitzvah
After chatzot (Torah cutoff)	❌ No — chametz no longer belongs to you; you must go back and do bi'ur

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Siman 445 — The Laws of Bi'ur Chametz (דין ביעור חמץ)

Se'if 1 — Methods of Disposal: The Machloket

Famous machloket in the Mishnah (Pesachim):

Opinion	Method of Bi'ur
Chachamim (majority)	Any form of destruction: burning, crumbling and scattering to the wind, throwing into the sea
Rabbi Yehuda	Must **burn** — compared to notar (leftover sacrifice that must be burnt)

Shulchan Aruch: Follows the **Chachamim** — any form of destruction suffices.

Three valid methods:

1. **Sorfo** — burn it
2. **Crumble and scatter** — break into small pieces and throw into the wind/air
3. **Throw into the sea** — or a river, lake, etc.

If the bread is **stale/hard**, break it into smaller pieces first before throwing into the sea — so the water can break it down properly.

Rama (Ashkenazim): The minhag is to **burn** (lesorfo) — following Rabbi Yehuda's opinion. This is why Ashkenazim always try to burn their chametz.

For Sephardim: Burning is not required. Flushing down the toilet, pouring chemicals to make it inedible, crushing and scattering — all valid. The Ben Ish Chai does recommend burning even for Sephardim as a nice minhag, but it's not obligatory.

The Rama adds: It's a good custom to burn during the **day** (not just at night) — paralleling how leftover sacrifices (notar) were burnt during the day in Temple times. However, if there's concern that a mouse will take the chametz overnight, you may burn at night.

COVID-era relevance: During COVID, Ashkenazi authorities in London ruled you could flush chametz down the toilet instead of going out to burn — confirming that even for Ashkenazim, the fundamental halacha allows other forms of disposal.

Se'if 1 (Continued) — Leave Something for Bi'ur

Mishnah Berurah and Acharonim: If you gave all your chametz to a non-Jew before the prohibition — that's fine, but **leave at least a kezayit** to perform the mitzvah of bi'ur chametz yourself.

Why? Giving chametz to a non-Jew is not an "act of destruction" — it's a gift. The mitzvah of tashbitu requires an actual act of disposal/destruction. So always keep a small amount for personal bi'ur.

What About Eating as Bi'ur?

- The **Minchat Chinuch** held that eating chametz is a form of bi'ur (you're destroying it by consuming it).
- He even suggested: from 30 days before Pesach, every time you eat chametz, have in mind you're fulfilling the mitzvah of bi'ur chametz.
- **The Rav's view:** This is a stretch — eating for breakfast isn't really "disposing" of chametz. The mitzvah of bi'ur implies an act of destruction, not consumption.
- **Practical advice:** Don't rely solely on eating. Always leave aside at least a kezayit of chametz for proper bi'ur.

Se'if 2 — Coals from Burning Chametz

When Was the Chametz Burnt?	Status of the Coals
Before the time of prohibition	Coals are **permitted** — you can use them, benefit from them
After the time of prohibition	Coals are **forbidden** (asur be-hana'ah) — you cannot make a fire with them, since they originated from chametz that was already asur be-hana'ah

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Se'if (from Mishnah Berurah) — A Non-Jewish Maid Living in Your Home

Scenario: A non-Jewish live-in maid eats from your food as part of the employment agreement. Can you give her chametz before Pesach, knowing she'll eat it during Pesach (reducing what you'd need to provide her)?

Mishnah Berurah: This is **permitted** — as long as you don't explicitly say "this is your food for Pesach" (which would be benefiting from chametz on Pesach). If you simply give her food and she happens to eat it during Pesach, that's fine. She can still come to your fridge for Pesach food if she wants — you can't refuse her based on having given her chametz.

Summary of Key Halachot

Siman:Se'if	Key Takeaways
444:2 (schedule)	Thursday night: Bedikat Chametz + Bitul. Friday: Bi'ur (preferably before chatzot, but any time is fine). No bitul on Friday. Shabbat morning: Bi'ur + Bitul at the correct time.
444:3 (dishes)	Don't cook sticky chametz foods for this Shabbat (washing concern). Modern application: if you normally keep a clean kitchen, you may wash dishes on Shabbat.
444:4 (disposal on Shabbat)	Crumbs: shake onto floor. Remaining bread: give to non-Jew (small amounts); gift with kinyan (large amounts); flush toilet; pour chemicals; add to mechirat chametz cupboard; or cover with kli + bitul.
444:4 (bitul)	Even if all chametz consumed — still say Kol Chamira on Shabbat morning as a precaution.
444:5 (travelling)	Travelling for mitzvah + remembered chametz at home: if time, go back. If not, bitul suffices — but only before the 5th hour cutoff. After chatzot: bitul doesn't work, must do bi'ur.
445:1 (methods)	Bi'ur chametz: burn, crumble + scatter, or throw in sea. Ashkenazim: minhag to burn. Sephardim: any method valid. Always leave a kezayit for personal bi'ur.
445:1 (eating)	Minchat Chinuch: eating = bi'ur. Most poskim disagree. Don't rely solely on eating.
445:2 (coals)	Coals from chametz burnt before prohibition: permitted. After prohibition: forbidden (asur be-hana'ah).

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